DR. SELÇUKHAN ÜNEKBAŞ

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Overview

I am a Postdoctoral Researcher in Law at the European University Institute and a Research Fellow at Berkeley's Haas School of Business. My work sits at the intersection of competition/antitrust law, empirical law and economics, and management scholarship on firm capabilities and innovation. I pursue two connected questions: how firms innovate in markets and what competition law can do about it, and how legal doctrine receives knowledge about the firm and reconstructs it in its own language. My teaching is research-based and leverages innovative tools to bolster learning outcomes. I speak English fluently and Italian at an intermediate level, alongside my native Turkish.

Employment

03/2026 – present	**Postdoctoral Researcher**, Department of Law, European University Institute (EUI)
01/2025 – present	**Research Fellow**, Tusher Strategic Initiative for Technology Leadership, Haas School of Business, University of California, Berkeley
04/2022 – present	**Research Fellow**, Dynamic Competition Initiative
04/2024 – 06/2024	**Visiting Researcher**, Georgetown University Law Center
04/2021 – 09/2022	**Research Assistant**, Institute for European Studies, University of Brussels (VUB)
03/2021 – 06/2022	**Associate**, Department of Competition and Regulation, Dentons Europe LLP, Istanbul, Turkey
06/2018 – 08/2018	**Legal Intern**, MENAT Headquarters, Microsoft, Istanbul, Turkey

Education

2021 – 2025	**PhD in Law**, EUI **Advisor**: Professor Nicolas Petit (EUI) **Coordinator** of the Competition Law Working Group (CLWG)
2022	**LLM in International, European, and Comparative Law**, EUI
2020	**LLM in European Business Law**, Institute for European Studies, VUB **Advisor**: Professor Frank Hoffmeister (VUB & European External Action Service)
2019	**LLB in Law**, Anadolu University, Eskisehir, Turkey
2017	**Erasmus+ Exchange**, Kaunas University of Technology, Lithuania

Research

Books

Innovation and the Revamping of Competition Law (Fischer, Hornkohl, & Unekbas eds., forthcoming, Nomos 2026).

Theses

Reframing Competitiveness: Innovation, Capabilities, and the Future of European Merger Law (PhD Thesis, EUI, 2026).

Book Chapters

'Remedies in Merger Control' in Hancher, Lopez, Anchustegui, & Salerno (eds), *Encyclopedia of European Union Law* (forthcoming 2027).

'As Efficient Competitor Concept' in Rusu, van de Gronden, Maggiolino, Oliveira Pais, & Veenbrink (eds), *Elgar Encyclopaedia of Competition Law* (Elgar 2026).

'Exclusionary Conduct' in Rusu, van de Gronden, Maggiolino, Oliveira Pais, & Veenbrink (eds), *Elgar Encyclopaedia of Competition Law* (Elgar 2026).

'Competitiveness and Antitrust Law: Between Feasibility and Desirability' in Hornkohl, Zelger, Achleitner, & Fischer (eds), *Questioning the Role of Competition Law in the 21st Century* (Hart 2025).

'Should the Gig Economy Stretch the Boundaries of Competition Law?' in Sanlı, Alma, & Tanlı (eds), *Applied Competition Law Seminars 2022* (On İki Levha Press 2023) – *co-authored with Barış Yüksel*

'The Yesterday and Today of Post-Contractual Competition Restrictions' in Aslan, Aşçıoğlu Öz, & Sanlı (eds), *A Gift to Nurkut Inan* (On İki Levha Press 2022) – *co-authored with Armanç Canbeyli*

Peer-Reviewed Articles

'Do Competition Authorities Learn from Each Other?' (2026) Journal of Antitrust Enforcement (forthcoming). (DOI)

'Invisible Deterrence in Merger Policy: Why the Prohibition Rate Says Little' (2026) 17 Journal of European Competition Law & Practice 1 – *co-authored with Bo Heiden, Frederic Jenny, Nicolas Petit, and David Bosco.* (DOI)

'Killer Acquisitions: Evidence from European Merger Cases' (2025) 86 (3) Antitrust Law Journal 647 – *co-authored with Marc Ivaldi and Nicolas Petit.* (DOI)

'The Rule of the Least Imperfect: A Review of Despoina Mantzari, *Courts, Regulators, and the Scrutiny of Economic Evidence*' (2024) 16 European Journal of Legal Studies 147. (DOI)

'Efficiency and Capabilities in Article 102 TFEU' (2024) 15 (3) Journal of European Competition Law & Practice 178. (DOI)

'Verticalization of Data Sharing and the Difficult Path to "Eunnovation"' (2023) 7 (2) Market and Competition Law Review 131. (DOI)

'Procuring Sustainability – How the Public Sector Can Deliver on its Greening Potential' (2022) 32 Journal of Transnational Law & Contemporary Problems 33 - *co-authored with Harri Kalimo et al.* (DOI)

'Resurrection of the Comfort Letter: Back to the Future?' (2022) 15 (25) Yearbook of Antitrust and Regulatory Studies 37. (DOI)

'Competition, Privacy, and Justifications: Invoking Privacy to Justify Abusive Conduct Under Article 102 TFEU' (2022) 1 (2) Journal of Law, Market & Innovation 123. (DOI)

'Scaling the Great Wall: The EU-China Comprehensive Agreement on Investment and Market Access' (2021) 22 (3) The Journal of World Investment & Trade 347. (DOI)

Working Papers

'Keeper Acquisitions? A Survival Analysis of Technology Mergers' – (under review) (SSRN).

'Capabilities Analysis in Competition Policy: Evidence from Merger Remedies' – *co-authored with Nicolas Petit* (SSRN).

Public Writing (selection)

'What Big Tech Keeps When It Buys' (*Network Law Review,* 14 September 2026).

'The EU Draft Merger Guidelines' Treatment of Capabilities Needs Revisiting' (*ProMarket,* 5 June 2026).

'The EU's Draft Merger Guidelines and the "Innovation Shield": Never Judge a Shield by its Cover?' (*Kluwer Competition Law Blog,* 8 May 2026).

'Why Use the Digital Markets Act for Cloud?' (*Oxford Business Law Blog,* 4 May 2026).

'Keeping Titans in Quarantine' *(Truth on the Market,* 17 March 2026).

'Killer acquisitions in digital markets may be more hype than reality' (*VoxEU CEPR*, 15 September 2023) - *co-authored with Marc Ivaldi and Nicolas Petit.*

'States as Firms: Regulation in the Digital Age' (*The Digital Constitutionalist*, 19 May 2023).

'A Dynamic Formulation for the AEC Test' (Contribution to European Commission Call for Evidence, 24 April 2023) - *co-authored with Bowman Heiden, Nicolas Petit, and Thibault Schrepel.*

'A Deep Dive into the Denizens of Morality, Technology, and Law: Are Digital Platforms Different?' (*Indian Journal of Law and Technology Blog,* 15 February 2023).

'Some Implications of Transatlantic Trade Issues on Competition Law' (*Kluwer Competition Law Blog,* 18 January 2023).

'Do First-Mover Advantages Last?' (*Network Law Review*, 21 December 2022).

'Of Instigators and Consummators: How Should Law Respond to Technological Change?' (*The Digital Constitutionalist*, 8 November 2022) – *co-authored with Elina Nerantzi.*

'An Analysis of the General Court's Google Shopping Judgment' (2022) BASEAK CORE Papers No. 18 (SSRN) – *co-authored with Barış Yüksel in Turkish.*

'Thou Shalt Not Commit Filicide: Antitrust's Make-or-Buy Problem Reinvigorated' (*Kluwer Competition Law Blog*, 27 September 2022).

'Diligence Is Due Indeed: Competition Law as a Barrier to Sustainable Supply Chains?' (*Kluwer Competition Law Blog*, 4 July 2022).

'How to Rein in Fossil Fuel Subsidies? Towards a New WTO Regime' (2021) Graduate Institute of Geneva CTEI Working Paper – *co-authored with Simon Happersberger and Eleanor R. Mateo.*

Teaching & Supervision

Courses

09/2023 – 02/2024	**Lecturer**, 'Legal Underpinnings of Innovation Policies', EUI
09/2022 – 02/2023	**Lecturer,** 'A Europe Fit for the Digital Age?', EUI
04/2021 – 06/2021	**Lecturer**, 'EU Internal Market and Competition Policy', University of Brussels

Invited & Guest Lectures

10/2026	**Invited Lecture,** Merger Control in Digital Markets, Florence Competition Autumn School, EUI
10/2026	**Invited Lecture**, 'Capabilities Analysis in Competition Policy', Stellenbosch University
04/2026	**Guest Lecture,** 'Dynamic Competition', Brussels Study Center (BSC)
02/2026	**Invited Lecture**, 'Do Competition Authorities Learn from Each Other?', University of Zagreb
06/2024	**Invited Lecture**, 'Killer Acquisitions', The Legal Place, Lisbon
12/2023	**Invited Lecture**, 'Competition Law and Regulation in Digital Markets', Bilgi University, Istanbul
04/2022	**Guest Lecture**, 'Digital Platforms: Towards a Comprehensive Policy Framework', EUI

Supervision

09/2026	**Nadide Akdag,** 'A Question Not Asked: Dynamic Competition and the Assessment of Self-Preferencing under EU Competition Law', Master's Thesis, BSC

Grants & Awards

Doctoral Grant, Italian Ministry of Foreign Affairs – EUR 140 000
Research Grants, EUI – EUR 3 000
Finalist, Concurrences Antitrust Writing Awards 2025
Fellowship Grant, Antitrust Law Section of the American Bar Association – USD 12 500
Finalist, 4th Ruben Perea Competition, Chillin'Competition & Journal of European Competition Law and Practice
2nd Place, G2 Legal Hackathon – Graduate Institute Geneva & Georgetown University Law Center
Fellowship Grant, European Commission & Turkish Ministry of Treasury and Finance – EUR 42 500
Outstanding Master Thesis Award, Institute for European Studies, University of Brussels

Conference Presentations

'Toward "Long-Term Competitiveness" in the EU?' – roundtable discussion in the "European Law Unbound Society (ELU-S) Annual Conference 2026", organized by the Catholic University of Portugal (UCP), 1-3 September 2026, Lisbon, Portugal.

'Beyond Rivalry: Expanding the Incentive Framework for Innovation' – conference presentation in the "10TH ANNUAL BERGEN COMPETITION POLICY CONFERENCE (BECCLE)", organized by the Norwegian School of Economics, 4-5 June 2026, Bergen, Norway.

in the "ANNUAL CONFERENCE OF THE MANNHEIM CENTER ON COMPETITION AND INNOVATION (MACCI)", organized by the University of Mannheim, 19-20 March 2026, Mannheim, Germany.

in the "21ST ANNUAL CONFERENCE OF THE ITALIAN SOCIETY FOR LAW AND ECONOMICS (SIDE)", organized by the University of Catania, 11-13 December 2025, Catania, Sicily, Italy.

'The Evolving Meaning of Fairness in Abuse of Dominance' – conference presentation in "FAIRNESS AS A PRINCIPLE OF EUROPEAN LAW", organized by the European Law Group of Max Planck Law, 4-5 September 2025, Munich, Germany.

'Prioritization, Competitiveness, and Article 102 TFEU: A Market Failure Perspective' – conference presentation in "APPLIED COMPETITION LAW SEMINARS 2025", organized by Istanbul Bilgi University, 20 March 2025, Istanbul, Türkiye.

'Maturity of Competition Law Systems in Countries Undergoing Economic Transformation' – presentation in "COMPETITION POLICY OBSERVATORY (COMPO) 1.0", organized by the European University Institute, 11-12 February 2025, Florence, Italy.

'Reorienting Exclusionary Conduct Law Toward Competitiveness' – conference presentation in the "20TH ANNUAL CONFERENCE OF THE ITALIAN SOCIETY FOR LAW AND ECONOMICS (SIDE)", organized by La Sapienza University of Rome, 18-20 December 2024, Rome, Italy.

'European Merger Control: An Overview of Innovation Considerations' – conference presentation in "26TH ANNUAL COMPETITION LAW AND POLICY WORKSHOP: CAPABILITIES ASSESSMENTS FOR INNOVATION IN MERGER REVIEW", organized by the European University Institute, 23 October 2024, Florence, Italy.

'Governing Generative AI: Insights from Fairness in EU Competition Law' – conference presentation in "DISCUSSING THE TURKISH AI ACT", organized by the Turkish Better Justice Association ("Daha İyi Yargı Derneği"), 4 October 2024, Istanbul, Türkiye.

'Dynamic Antitrust Law: Between Feasibility and Desirability' – conference presentation in "THINK BIG – YOUNG COMPETITION LAWYERS CONFERENCE", organized by the University of Vienna, 4 – 6 September 2024, Vienna, Austria.

'A Comparative Approach to Regulating Digital Markets' – presentation in "COMPETITION LAW AND REGULATION IN DIGITAL MARKETS CERTIFICATE PROGRAM", organized by the Competition Law and Policy Center at Istanbul Bilgi University, 19 December 2023, Istanbul, Türkiye.

'Killer Acquisitions: Evidence from EC Merger Cases in Digital Industries' – conference presentation in the "19TH ANNUAL CONFERENCE OF THE ITALIAN SOCIETY OF LAW AND ECONOMICS (SIDE)", organized by the University of Brescia, 13 – 15 December 2023, Brescia, Italy.

'The Verticalization of Data Sharing' – conference presentation in "BUSINESS-TO-BUSINESS DATA SHARING WITHIN THE EU DIGITAL MARKET", organized by the Centre for Antitrust and Regulatory Studies at the University of Warsaw ("CARS"), 14 – 15 September 2023, Warsaw, Poland.

in the "4TH APULIA CONFERENCE", organized by Bocconi University, 6 – 7 July 2023, Milan, Italy.

'Precautionary Antitrust and Generative AI' – conference presentation in "EMERGING TECHNOLOGIES AND THE LAW", organized by the Association for the Advancement of Artificial Intelligence (AAAI), 5 – 6 July 2023, Istanbul, Türkiye.

'Protecting Less Efficient Competitors' – conference presentation in "ASCOLA 2023", organized by the National and Kapodistrian University of Athens & Hellenic Competition Commission, 29 June – 2 July 2023, Athens, Greece.

in "DIGITAL TECHNOLOGIES, PUBLIC POLICY, AND COMPETITION LAW"; organized by Erasmus University Rotterdam & Tilburg University, 1 – 2 June 2023, Rotterdam, the Netherlands.

in "COMPETITION LAW AND ECONOMICS EUROPEAN NETWORK (CLEEN)"; organized by the Mannheim Centre for Competition and Innovation (MaCCI), 25 – 26 May 2023, Mannheim, Germany.

'A More Technological Approach to European Competition Law' – conference presentation in "DYNAMIC COMPETITION: APPLIED"; organized by the European University Institute, University of California Berkeley, and Vrije Universiteit Amsterdam, European University Institute, 13 – 14 April 2023, Florence, Italy.

'**Courts, Regulators, and the Scrutiny of Economic Evidence by Despoina Mantzari'** – monograph discussion in "FLORENCE SCHOOL OF REGULATION: INSIGHTS'; organized by the European University Institute, 1 March 2023, Florence, Italy.

'Killer Acquisitions: Evidence from EC Merger Cases in Digital Industries' – presentation with Professor Marc Ivaldi and Professor Nicolas Petit, at the COMPETITION LAW WORKING GROUP OF THE EUROPEAN UNIVERSITY INSTITUTE (EUI), 27 January 2023, Florence, Italy.

'Do First-Mover Advantages Last? Implications for Antitrust Law and Policy' – conference presentation in "COMPETITION IN DIGITAL MARKETS"; organized by the Jean Monnet Chair of Digitalization of EU Law ("DIGITEUL"), Koç University, 30 September 2022, Istanbul, Türkiye.

'Resurrection of the Comfort Letter: Back to the Future?' – conference presentation in EU COMPETITION LAW ENFORCEMENT: CHALLENGES TO BE OVERCOME; organized by the Jean Monnet Network of Enforcement of EU Law ("EULEN"), University of Warsaw & Bocconi University, 26 – 27 May 2022, Warsaw, Poland.

Conference Organizations (selection)

Co-organizer, "2025 Early Career Scholars Conference – Innovation and the Revamping of Competition Law", EUI (*with Eva Fischer & Lena Hornkohl*)

Co-organizer, "26th Annual Competition Law and Policy Workshop", EUI (*with Nicolas Petit & Sir Philip Lowe*)

Organizer, "Tech Monopoly", EUI – book presentation by Professor Herbert Hovenkamp (University of Pennsylvania Carey Law School)

Organizer, "Regulating Access and Transfer of Data", EUI – book presentation by Professor Bjorn Lundqvist (Stockholm University)

Memberships

Managing Editor, Journal of Dynamic Competition (JDC)

Member, Italian Society for Law and Economics (SIDE)

Member, Academic Society for Competition Law (ASCOLA)

References (on request)

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